
**IN THE COURT OF APPEAL OF THE DEMOCRATIC
SOCIALIST REPUBLIC OF SRI LANKA**

*In a matter of an application for Writs of
Certiorari and Mandamus, under and in
terms of Article 140 of the Constitution of
the Democratic Socialist Republic of Sri
Lanka.*

**01.KUDAGE SOMA RAMYALATHA
JAYASEKARA,**

No. 97/17C, Jakotuwa,
Welewatte,
Wellampitiya.

**02.KUDAGE DILANI KUSUM
JAYASEKARA,**

No. 97/17B, Jakotuwa,
Welewatte,
Wellampitiya.

**Court of Appeal No.
CA/WRT/ 034/2024**

**03.KUDAGE WICKRAMA LAL
JAYASEKARA,**

No. 97/17, Jakotuwa,
Welewatte,
Wellampitiya.

**04.KUDAGE LILANI HEMALATHA
JAYASEKARA,**

No. 641/B, Thun anda hena,
Korathotda, Kaduwela.

05. VIDANALAGE PREMARATHNA,

No. 97/17B, Jakotuwa,
Welewatte,
Wellampitiya.

06. VIDANALAGE RUWANJAYA

MAYURA MIYURAJ,

No. 97/17B, Jakotuwa,
Welewatte,
Wellampitiya.

07. VIDANALAGE BUDDHINI

SAUBHAGYA,

No. 121, Isuru Vimana,
Horana.

PETITIONERS

-Vs-

01. LAND REFORM COMMISSION,

No. 475, Kaduwela Road,
Battaramulla.

02. HAPUTHANTHRIGE

SARATHCHANDRA,

No. 97//17/P, Jakotuwa,
Welewatte, Wellampitiya.

03. Hon. ATTORNEY GENERAL,

Attorney General's Department,
Colombo 12.

RESPONDENTS

Before : JUSTICE R. GURUSINGHE
JUSTICE ANNALINGAM PREMASHANKER

Counsel: Padma Bandara, President's Counsel, with Samurdhi Fernandopulle, Attorney-at-Law, Nirosha Kulathunga, Attorney-at-Law, Hansana Gamage, Attorney-at-Law instructed by Widyanandage Pasindu Prabath, Attorney-at-Law for The PETITIONERS.

**Chaya Sri Nammuni, Deputy Solicitor General,
Peshan Gunaratne, State Counsel, Avanthi
Weerakoon, State Counsel, Madusha
Thanipulliarachchi, State Counsel, Jermiah
Sourjajh, State Counsel, Chathurika Wethasinghe,
State Counsel instructed by R. Firdouz, Senior State
Attorney for the 1st and 3rd RESPONDENTS.**

Lakshan Dias, Attorney- at- Law with Hirushi Jayawardena, Attorney- at- Law, Yashodara Illangasinghe, Attorney- at- Law, Shaneli Kumarasinghe, Attorney- at- Law and Imasha Fernando, Attorney- at- Law for the 2nd RESPONDENT

Written Submission of the Petitioners :- 01.12.2025,15.06.2026

Written Submission of the 1st, 3rd Respondents :- 05.12.2025

Written Submission of the 2nd Respondents :- 19.12.2025

Argued on :- 01.06.2026

Judgement on :- 06.08.2026

JUDGEMENT

01. INTRODUCTION

Seven persons, allegedly from one family, named as The Petitioners, narrated certain facts in respect of allocation of land marked lot of 22 depicted in plan No.366 of 13/11/2001, called and known as **Induruwe Kubura** alias **Jakotuwewatta** situated at Kiththampathuwa- Veliwetta in extent of RI.P16.954, sought the following reliefs.

- a) To issue notice on the 1st, 2nd and 3rd Respondents above named,
- b) To issue a Writ of Mandamus directing the 1st Respondent to GRANT A DEED OF TRANSFER IN FAVOUR OF THE PETITIONERS in respect of the PORTION OF LAND RESERVED FOR THE SAID K. A. LUSIHAMY and to hand over the vacant possession of the same which is more fully described in the schedule below.
- c) To issue a Writ of Prohibition restraining the 1st Respondent from making ARRANGEMENTS TO DIVEST AND/OR ALIENATE THE LAND ALLOTTED TO THE SAID K. A. LUSIHAMY OR PORTIONS THERE FROM TO THE 2ND RESPONDENT OR ANY OTHER PERSON,

d) To issue a Writ of Certiorari to quash the decision taken up by the 1st Respondent TO GRANT A LEASE IN FAVOUR OF THE 2ND RESPONDENT IN RESPECT OF THE PROPERTY DESCRIBED IN THE SCHEDULE BELOW.

e) To grant cost and,

f) To grant such other and further relief as to your lordship's court shall seem meet.

02. ARGUMENT & JUDGEMENT

There were three Respondents named in. 1st and 3rd Respondents represented by a team of State Counsel, while 2nd Respondent was represented by a team of private lawyers. This matter has been argued before several benches and finally reargued on 01.06.2026 before us; and the judgement was reserved for the 6th August 2026.

03. PETITIONERS' ACTION

Thereafter, the petitioner submitted a motion dated 15.06.2026 together with an affidavit and several documents mentioned therein.

04. MOTION OF 15.06.2026

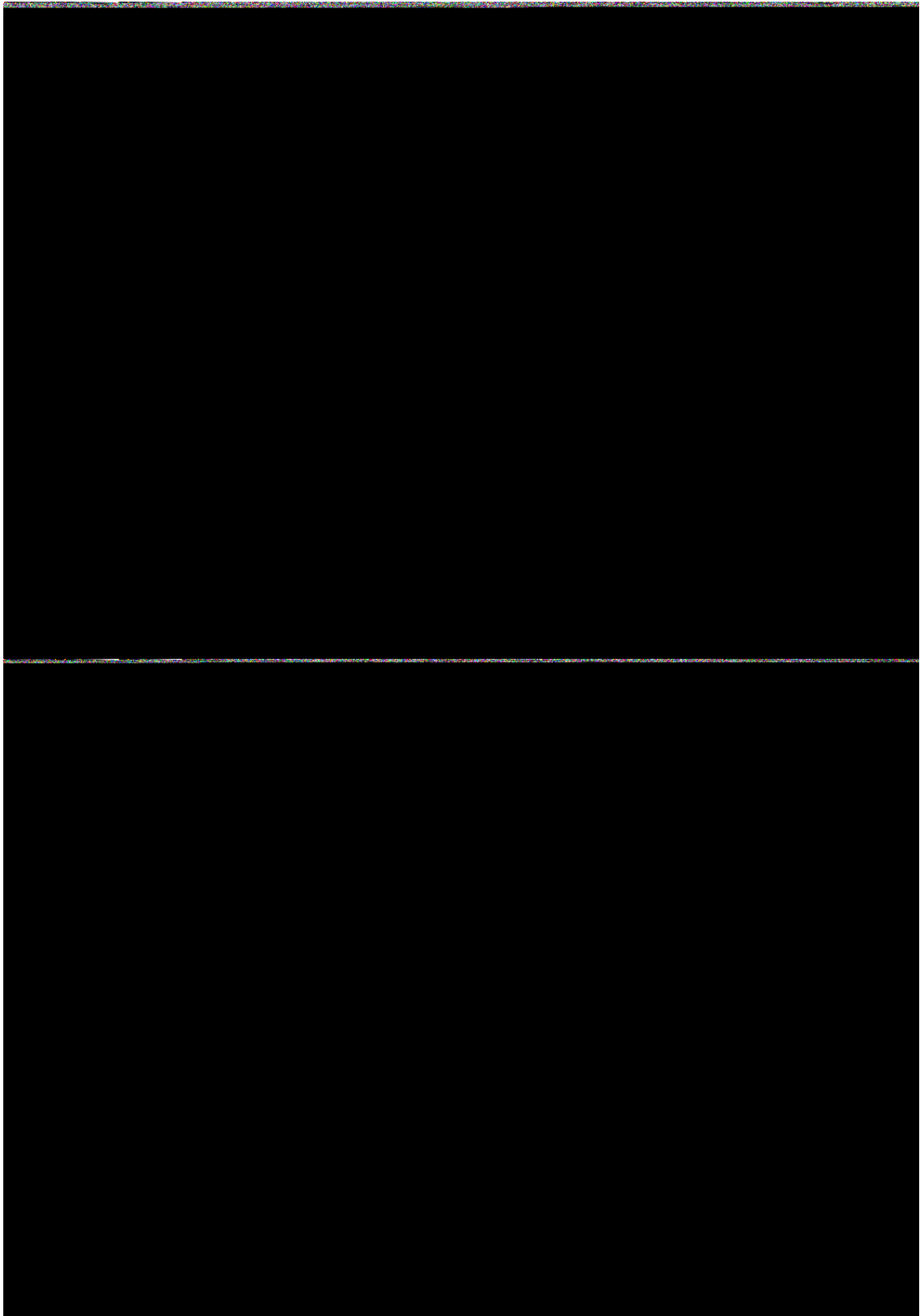
The motion is reproduced hereto, is as follows;



05. AFFIDAVIT OF 14.06.2026

The affidavit of The Petitioners is reproduced hereto, is as follows;





06. MOTION OF THE RESPONDENTS

The 1st and the 3rd Respondents submitted a motion dated 16.06.2026, objecting to the motion and documents of The Petitioner. The said motion is reproduced hereto, is as follows;



07. DEALS

On the application of the parties, those motions were mentioned on 25.06.2026 and the Court decided to deal with the said motions in the judgment.

08. VIGILANT

The motions are self explanatory. A party must be vigilant of their steps in an action. One can't sleep over their rights and duties. The party has to face the consequences for their failure.

09. STEPS

Originally, the Petition was supported on 05.02.2024 and the Court has issued notices to the Respondents. Respondents entered appearances and obtained date for their objections. The objections finally filed on 05.02.2025. The Petitioners have filed counter affidavit on 07.05,2025. The matter has been taken up for argument-several times and finally the argument concluded on 01.06.2026 before the preset bench of Court No. 205. Judgement was reserved for 06.08.2026, and the parties were directed to submit synopsis within two weeks from 01.06.2026.

10. LATE STEPS

Surprisingly, The Petitioner, by their motion dated 15.06.2026, submitted an Affidavit together with X7, X8, X9, X10, X11, X12,

X13, X14, X15 and two special Power of Attorney without markings or pleading. The motion and the Documents of The Petitioners were vehemently objected to by the 1st and 3rd Respondents by their motion dated 16.06.2026, and an application was made to the reject the said Documents.

11. DECISION

As explained above, a party cannot introduce fresh evidence after the completion of the argument. The Petitioners have no explanation for their belated actions. The Courts cannot permit the said action for reasons such as Good Governance, Equity Principles and Natural Justice, and etc.

This Court having considered all the applications and submissions made by the parties, decides to reject the motion dated 15.06.2026 of The Petitioner and the Affidavit and the annexed Documents, and also decides not to consider the same as part of the records.

12. FACTUAL MATRIX 01

I shall consider now the merits of The Petitioner's Application. The Petitioners jointly made the application seeking writs of Mandamus directing the Respondents to issue Deed of Transfer in respect of certain plot of Land, and other reliefs. Originally the said Land in extend of 22 Acres belongs to J. L. D. Peiris Company. The caretaker was K. Teeman Jayasekera. The said Company gifted 4

Acres to K. Teeman Jayasekera as a token of gratitude. The said K. Teeman Jayasekera, his wife K. A. Lusihamy and their five children were in possession of the entire Land.

13. FACTUAL MATRIX 02

In 1975, the said property was vested with the Land Reform Commission. K. A. Lusihamy preferred a claim for divesting of a portion of the said Land. In respect of the claim, certain steps were taken, and parties deposited the purchase price with the 1st Respondent. But the Deed is not granted in the name of the Petitioners. K. A. Lusihamy also died. Now the Petitioner claims the Deed from the Respondent.

14. FAILURE

The Respondents took up position, *inter alia*, that The Petitioners have not proved that they are the heirs of K. A. Lusihamy. Specially, the 1st and 3rd Respondents averred that The Petitioners failed to prove the heirship and demanded the strict proof thereof. In the argument, 1st and 3rd Respondents documented their submissions on the heirship and argued that The Petitioners' failure to prove the same rendered their claim for the plot of land unsuccessful.

15. AVERMENTS

The Petitioners in their petition dated 28.10.2023 averred as follows;

Paragraph 4. The Petitioners above named are persons residing at Jakotuwa, Welewatte, Wellampitiya.

Paragraph 5. **The 1st, 2nd, 3rd, and 4th Petitioners and the deceased Kudage Yasantih Jayasekera are children of K. Teeman Jayasekera and K. A. Lusihamy.**

Paragraph 6. **The 5th Petitioner is the Husband of the deceased Kudage Yasanthi Jayasekera and the 6th and 7th Petitioners are the only children of the said deceased Kudage Yasanthi Jayasekera and therefore the 5th, 6th, and 7th Petitioners are the sole legal heirs of the said deceased Kudage Yasanthi Jayasekera.**

16. DENIAL

The 2nd Respondent in his Amended Statement of Objections dated 28.11.2024 averred as follows;

Paragraph 8. Answering paragraphs 1, 2, 3 and 4 of the Petition, the 2nd Respondent states that he admits the averments contained in paragraphs 1, 2, 3, and 4 of the Petition.

Paragraph 9. **Answering Paragraphs 5, 6, 7, 8, 9, and 11 of** the Petition, the 2nd Respondent states that **he is unaware of the averments contained in the Paragraphs 5, 6, 7, 8, 9,** and 11 of the Petition.

17. DENIAL & DEMAND

The 1st and 3rd Respondents in their Statement of Objections dated 20.01.2025 averred as follows;

Paragraph 6 (b). The Respondent is the owner of the subject Land as it was vested in the Respondent Commission.

Paragraph 6 (c). The said K. A. Lusihami had passed away a long time ago, and the Respondent had made no alienation to K. A. Lusihami in respect of the subject land.

Paragraph 7. The Respondent admits the averments contained in Paragraph 1, 2, and 3 of the Petition.

Paragraph 8. **The Respondent denies the averments contained in paragraph 4, 5, 6, 7, and 8** of the Petition, and states that **the burden of proof lies with the Petitioners as no documentary proof has been annexed to prove the same and the Respondent** further reiterates

the position contained in paragraph 6 of these Statement of Objections.

18. COUNTER STEPS

The Petitioners in their Counter Affidavit dated 10.04.2025 averred as follows;

Paragraph 7. In response to paragraph 6(a) and (b) of the Statement of Objection of the 1st Respondent, we state that we do not challenge such averments contained in the said paragraph.

Paragraph 8. While denying the averments contained in paragraph 6(c) of the Statement of Objections of the 1st Respondent, we state that K A. Lusihamy died on 30.12.2018 and prior to that the 1st Respondent having determined to grant a Deed in her Favour in respect of the aforesaid Lot No. 22, accepted the total consideration for the land together with Legal Charges and Stamp duty for such purpose.

Paragraph 12. **While denying the averments contained in paragraph 8 of the Statement of Objections of the 1st Respondent, we state that we have annexed all necessary documents to their Petition in order to support their application** to invoke the writ jurisdiction of Your Lordship's Court.

19. FAILURE

As per the above averments, The Petitioners have failed to take any steps to proof that they are the heirs of the K A. Lusihamy, despite the Respondents demanded it. The above failure goes to the root of this case, namely, the Petitioners' entitlement, and The Court accept that The Petitioners have failed in their tasks of claiming the Land reserved for K A. Lusihamy. As such, the other materials are not been considered.

20. CONCLUSION

FOR THE REASONS ADUMBRATED ABOVE, THIS COURT IS COMPELLED TO REJECT THE PETITIONERS' APPLICATION AND ACCORDINGLY THE WRIT APPLICATION IS DISMISSED BUT WITHOUT AN ORDER FOR COST.

On this 6th day of August 2026

JUDGE OF THE COURT OF APPEAL

R. GURUSINGHE, J.

I agree.

JUDGE OF THE COURT OF APPEAL